

resulted if the investment had been made in Bank Annuities (*e*).

4. 22 & 23 Vict. c. 35. — By Lord St. Leonards' Act, 22 & 23 Vict. c. 35, s. 32, trustees, executors, and administrators, where not expressly forbidden by the instrument creating the trust, are authorized to invest trust funds in the stock of the Bank of England or Ireland, or on East India stock; but the Act does not apply where a particular fund is settled specifically and there is no power of varying securities (*f*). This clause was rightly held by Sir John Romilly, M. R. (*g*), (in accordance with the view taken by V. C. Kindersley, in reference to the 27th section (*h*), but in opposition to V. C. Stuart (*i*)), not to apply to trusts created by an instrument dated before the Act, but now by the Amendment Act, 23 & 24 Vict. c. 38, s. 12, the 32d section of the original Act is made retrospective.

30 & 31 Vict. c. 132. — The Court refused under this Act to sanction an investment in stock created under the India Loan Act, 22 & 23 Vict. c. 39 (*j*), but by 30 & 31 Vict.

c. 132, s. 1, the words East India Stock are to be [*308] * taken to include as well the old East India stock as "*East India stock charged on the revenues of India, and created under and by virtue of any Act of Parliament,*" passed on or after the 13th day of August, 1859 (*a*).

[**India Loan Acts.**] — The stock under the India Loan Act has been issued under the name of *India*, and not of *East India* stock, and hence a doubt has been suggested whether India stock be within the purview of 30 & 31 Vict. c. 132,

(*e*) *Hynes v. Redington*, 7 Ir. Eq. Rep. 405; 1 Jones & Lat. 589; see *post*, chap. xxx. s. 3.

(*f*) *Re Ward's Settlement*, 2 J. & H. 191; but see *contra*, *Waite v. Littlewood*, 41 L. J. N. S. Ch. 636. But in which the case before V. C. Wood was not cited.

(*g*) *Re Miles's Will*, 5 Jur. N. S. 1236.

(*h*) *Dodson v. Sammell*, 6 Jur. N. S. 137; see S. C. 1 Dr. & Sm. 575.

(*i*) *Re Rich's Trusts*, Jan. 27, 1860; and see *Page v. Bennett*, 2 Giff. 117; *Re Simson's Trusts*, 1 J. & H. 89.

(*j*) *Re Colne Valley Railway*, Johns. 528; 20 L. J. N. S. Ch. 33; *Re Simson's Trusts*, 1 J. & H. 89; *Equitable Reversionary Interest Society v. Fuller*, *Ib.* 382, *per Cur.*

* (*a*) The day on which the India Loan Act received the Royal Assent.